

GZ: 2021-0.415.529 dated August 6, 2021 (Case Number: DSB-D124.3325)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), statistical data, etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected. The name of the AMS as a public law entity, which was not a party to this matter, has not been pseudonymized, as its legally defined tasks of employment mediation are part of the reasoning, and therefore a meaningful and content-preserving pseudonymization of the name in this decision to be published in accordance with § 23 Abs. 2 DSG was not possible.]

DECISION RULING

The Data Protection Authority decides on the data protection complaint of Dipl. Ing. Richard A*** (complainant) from **** E***berg dated December 1, 2020 against N*** Personnel Provisioning GmbH (respondent) from **** J***stadt (registered in the commercial register at the District Court H**** under FN*3*2*0g) for violation of the right to erasure as follows:

1. The c o m p l a i n t i s g r a n t e d, and it is d e c l a r e d that the respondent has violated the complainant's right to erasure by failing to comply with his request for erasure dated October 3, 2020.
2. The r e s p o n d e n t i s o r d e r e d to erase all data processed by it concerning the complainant within a p e r i o d of 4 w e e k s, failing which enforcement will be initiated.

Legal Basis: Art. 5 para. 1 lit. a and para. 2, Art. 12 para. 3, Art. 14 para. 1, para. 2 and para. 3 lit. b, Art. 17 para. 1 lit. d, Art. 24 para. 1, Art. 51 para. 1, Art. 57 para. 1 lit. f, Art. 58 para. 2 lit. c, and Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1 as amended; § 18 para. 1 as well as § 24 para. 1 and para. 5 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended.

REASONING

A. Submissions of the Parties and Procedural History

1. The complainant stated in his complaint received by the Data Protection Authority on December 1, 2020, that the respondent had not responded to his written (via email) and justified request for erasure dated October 3, 2020, nor had he received a rejection of the request. He had received unsolicited job offers via SMS from the respondent, whereby the respondent had stated by phone that it had obtained his contact details from the Public Employment Service (AMS).
2. The respondent, requested by the Data Protection Authority to provide a statement (procedural order dated December 7, 2020, GZ: 2020-0.800.849), initially did not respond.
3. Following the urgency of a statement (procedural order dated March 25, 2021, reference number: 2021-0.213.417, duly delivered to the respondent as a registered letter on April 6, 2021), the respondent submitted the following statement in writing on April 12, 2021: The appellant was registered as seeking employment at the AMS at the time of the first contact. Since the data was received "from the AMS as the official platform for job placement," the respondent does not consider it unlawful to present a job offer to the appellant. The respondent did not address the question of the appellant's right to deletion in their statement.
4. After hearing from the parties regarding the findings of the investigation (procedural order dated April 15, 2021, reference number: 2021-0.267.486), the appellant submitted the following statement on April 19, 2021: The respondent's perspective on handling his data was known to him from direct contacts. However, he is not concerned with the legality of the collection of his data, but solely with the question of enforcing his right to deletion. He had suspended all his job advertisements via the AMS online portal after he no longer sought support from the AMS; however, he had received SMS messages with job offers from the respondent despite multiple requests for deletion, the last one being on April 16, 2021.
5. After hearing from the parties regarding the appellant's statement of April 19, 2021, and requesting the respondent to respond again to the appellant's submissions, including a reference to the accountability obligation under Article 5(2) GDPR (procedural order dated April 23, 2021, reference

number: 2021-0.291.660), the respondent did not provide any further statement.

B. Subject of the Complaint

Based on the submissions of the parties, it is evident that the subject of the proceedings is whether the respondent has violated the appellant's right to deletion by refusing to comply with a deletion request dated October 3, 2020.

C. Findings of Fact

6. The respondent operates a business in the field of labor leasing (GISA reference number *6*99*4*8).

7. Evaluation of Evidence: This finding is based on the public business information system Austria (GISA) of the Federal Ministry for Digital and Economic Affairs (data inquiry of the respondent on August 5, 2021, excerpt enclosed in the reference number of this decision).

8. The respondent processes data of the appellant (in particular, his mobile phone number 06**/*8*4*77*1), which it obtained without the involvement of the appellant from a public online job advertisement of the appellant, who was seeking employment in 2020, in the eJob-Room for applicants of the labor market service (AMS) and has processed it for its own purposes. Subsequently, it has repeatedly used this data to unsolicitedly contact the appellant via SMS.

Mobile phone short messages (SMS) to contact him and to request him to get in touch by phone with several of their clients who had suitable "job offers" for the professional profile of the complainant.

9. Evaluation of Evidence: These findings are based on the credible and factually undisputed statements made by the complainant in the complaint dated December 1, 2020 (enclosed as an entry in GZ: 2020-0.800.849) and in the statement dated April 19, 2021 (enclosed as an entry in GZ: 2021-0.291.660).

10. After a previous unsuccessful telephone contact with the respondent aimed at no longer receiving such SMS, and subsequent deactivation of the online job advertisement in the eJob-Room, the complainant sent a letter (email) on October 3, 2020, with the following content to the general email address of the respondent (office@n***personal.com):

[Note by the editor: The letter (email) of the complainant, which is represented here as a graphic file in the original decision, has been converted into a text document for reproduction in the RIS using OCR. The layout is only approximately reproduced.]

"Subject:

Request for immediate deletion pursuant to Art. 17 para. 1 GDPR

From:

Richard A***

Date

03.10.2020 17:**

Good day,

I hereby request the immediate deletion of personal data concerning me in accordance with Art. 17 para. 1 GDPR.

Please delete all personal data concerning me as defined in Art. 4 no. 1 GDPR.

I believe that the conditions of Art. 17 para. 1 GDPR are met. You cannot invoke any exception under Art. 17 para. 3 GDPR, especially since I am not a public figure.

Should I have granted consent for the processing of my data (e.g., under Art. 6 para. 1 letter a or Art. 9 para. 2 GDPR), I hereby revoke this for the entire data processing process.

Furthermore, I hereby object to the processing of personal data concerning me in accordance with Art. 21 GDPR, this also applies to profiling. I request that you restrict the processing of my data in accordance with Art. 13 para. 1 lit. d GDPR, as long as it is not yet determined whether your legitimate reasons outweigh mine.

If you have made the affected data public, you are obliged under Art. 17 para. 2 GDPR to take all reasonable measures to inform other controllers, such as search engine operators, who process the above-mentioned personal data about my request for deletion of all links, copies, or replications. This applies not only to exact copies of the affected data but also to those from which information contained

in the affected data can be derived.

If you have disclosed the affected personal data to one or more recipients as defined in Art. 4 no. 9 GDPR, you must also inform all such recipients of my request for deletion of the mentioned personal data and all references to it in accordance with Art. 19 GDPR. Please also inform me about these recipients.

Should you refuse the deletion, you must provide justification to me."

My request explicitly includes all other offers and companies for which you are the data controller in the sense of Art. 4 No. 7 GDPR. According to Art. 12 Para. 3 GDPR, you must inform me without delay, but no later than one month after receipt of the request, about the deletions made. To identify myself, I have attached the following data:

Dipl. Eng.

Richard

A***;

residing at: ****

E***berg;

Date of birth: **.**.1976;

Phone: 06**/*8*4*77*1;

r.a***@x***net.com

Should you fail to comply with my request within the specified period, I reserve the right to initiate legal action against you and to file a complaint with the competent data protection authority. Today is October 3, 2020.

Thank you in advance for your efforts.

Sincerely,

Dipl. Eng. Richard A***

11. The delivery of this message has been completed.

12. The respondent has not responded to this message and has not deleted any data of the complainant. The complainant has received further SMS messages with "job offers" of the described type at least on November 20, 2020, December 1, 2020, and April 16, 2021.

13. Evaluation of evidence: As before. See in particular the attachments (graphic files as a reproduction of the deletion request from October 3, 2020) to the complaint of December 1, 2020.

D. From a legal perspective, it follows that:

D. 1. Summary:

14. The complaint has been found to be justified, as the respondent has not lawfully processed the complainant's data from the outset, having violated the principle of transparency in accordance with Art. 5 Para. 1 lit. a and Art. 14 Para. 1 and 2 GDPR when collecting the data, which is why they are obliged to delete it in accordance with Art. 17 Para. 1 lit. d GDPR. The respondent has failed to demonstrate the legality of their data processing despite being requested to do so by the data protection authority.

D.2. Objection of the respondent:

15. The respondent has only countered the complaint (in the very brief statement of April 12, 2021) by claiming that they received the complainant's data from the AMS as the "official platform for job placement." Thus, they imply that they are allowed to process the complainant's data for the purposes of exercising their business, thus based on overriding legitimate interests in accordance with Art. 6 Para. 1 lit. f GDPR.

D.3. Legal basis for data processing, principles, and justification reasons:

16. Detached from the complaint case, such legitimate interests could be considered as legal bases for processing here.

17. However, the respondent overlooks that as the data protection controller, they need not only a justification reason in accordance with Art. 6 GDPR to ensure the legality of their data processing but must also adhere to the principles for processing personal data according to Art. 5 Para. 1 GDPR and demonstrate compliance with them in the event of a dispute in accordance with Para. 2 of the same legal text to the data protection authority (accountability). The respondent was explicitly informed of

this in the procedural order of April 23, 2021, GZ: 2021-0.291.660. Such proof has not been provided.

18. Accountability is a central element of the GDPR that has been newly introduced with the increased self-responsibility of the controller in relation to the Data Protection Directive. It arises from Art. 5 Para. 2 and Art. 24 Para. 1 GDPR and states that the controller must not only comply with the provisions of the GDPR but must also be able to demonstrate this. Thus, the burden of proof for compliance with the GDPR lies with the controller. This particularly entails a comprehensive documentation obligation (Hötzendorfer/Tschohl/Kastelitz in Knyrim, DatKomm Art 5 GDPR (as of May 7, 2020, rdb.at), Rz 58).

D.4. Principle of transparency and information obligation:

19. According to Art. 5 Para. 1 lit. a GDPR, personal data must be processed lawfully, fairly, and in a transparent manner in relation to the data subject ("Lawfulness, Fairness, Transparency").

20. Any processing of personal data should be lawful and fair. For natural persons, transparency should exist in such a way that they are aware of which personal data concerning them is being collected, used, accessed, or otherwise processed, and to what extent the personal data is processed and will be processed in the future (GDPR, Recital 39, sentences 1 and 2, emphasis by the data protection authority).

21. The implementation of the principle of transparency is particularly served by the information obligation according to Art. 14 GDPR, which applies when the data to be processed is not collected from the data subject themselves (i.e., not with their involvement, especially through questioning, or by written or online notification by the data subject themselves).

22. The respondent has taken the complainant's data from a job advertisement created by the complainant themselves in the eJob-Room of the AMS, having viewed and copied it there; however, this occurred without the involvement of the complainant and thus without the associated knowledge of the data collection and the information that the controller is required to provide in this context. The exception according to Art. 14 Para. 5 lit. a GDPR does not apply here.

23. According to Art. 14 Para. 3 lit. b GDPR, the respondent should have provided the complainant with the information relevant under Art. 14 Para. 1 and 2 GDPR at the latest at the time of the first SMS to the complainant.

24. By failing to do so, it has violated the principle of transparency according to Art. 5 para. 1 lit. a GDPR and has thus unlawfully processed the complainant's data from the very beginning.

D.5. Regarding the right to deletion:

25. According to Art. 17 para. 1 lit. d GDPR, the data subject has the right to request the immediate deletion of personal data concerning them from the controller, and the controller is obliged to delete personal data immediately, provided that the personal data has been unlawfully processed.

26. Further possible grounds for deletion (in particular a potentially justified objection by the complainant according to Art. 17 para. 1 lit. c GDPR) do not need to be addressed further.

D.6. Conclusions:

27. The respondent would therefore have been obliged to delete the complainant's data immediately upon receipt of their deletion request on October 3, 2020, but at the latest within the one-month period according to Art. 12 para. 3 GDPR. Since it has failed to do so, it has violated the complainant's right to deletion according to Art. 17 GDPR. This was to be established (point of decision 1).

28. To enforce the right to deletion, the respondent was further to be instructed according to Art. 58 para. 2 lit. c GDPR to comply with the complainant's deletion request (point of decision 2).